

verification process was unnecessary.

B. Legal Assessment

1. The Data Protection Authority has jurisdiction over the complaint based on the provisions of the GDPR, particularly in relation to the right of access as stipulated in Article 15.
2. The complaint is partially upheld, as it has been established that the respondent violated the complainant's right of access by failing to respond to the access request submitted by the complainant on January 25, 2021.
3. The respondent is ordered to provide information regarding the personal data processed about the complainant within a period of four weeks, failing which enforcement actions may be initiated against the respondent.

C. Conclusion

The Data Protection Authority concludes that the respondent must comply with the request for information as outlined in the decision. The respondent is reminded of their obligations under the GDPR and the implications of non-compliance.

D. Further Actions

The complainant is advised to monitor the respondent's compliance with this decision and may seek further legal remedies if necessary.

E. Notification

This decision will be communicated to both parties involved in the complaint.

F. Final Remarks

This decision is made in accordance with the applicable data protection laws and regulations, ensuring the protection of personal data and the rights of individuals.

G. Appeal

The parties have the right to appeal this decision in accordance with the relevant legal provisions.

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Verification process appears to be extensive. Furthermore, the complainant has never received the email mentioned by the respondent dated May 7, 2021, which was supposed to contain a verification code. The respondent has directed its offer for the use of the app N***Chatroom from the very beginning to users in the EU. Otherwise, the respondent would have restricted the geographical availability of the app in the Apple App Store to the USA or excluded the EEA.

Additionally, there was a hype around the app N***Chatroom in the German-speaking area at the end of 2020 / beginning of 2021, which also resulted in a significantly increased number of users and intensive media coverage about N***Chatroom. It makes no difference whether the high demand for the app in the EU came as a surprise to the respondent. The complainant was invited to N***Chatroom by another Austrian – Ms. Erika E***.

At this point, the respondent did not impose any geographical barriers by preventing the invitation of persons in the EU (for example, by excluding certain top-level domains in email addresses, certain country codes for mobile phone numbers, or certain IP addresses). Rather, the respondent allowed even N***Chatroom talks to be established that specifically target users in individual EU member states. In Austria, for example, the media outlets "die Presse" and "Puls 4" hosted such talks.

B. Subject of the Complaint

The question at hand is whether the respondent violated the complainant's right to information by failing to provide information in response to the complainant's request for information dated January 25, 2021. The requested information under Article 15(3) GDPR is not the subject of this partial decision.

C. Findings of Facts

The respondent is the operator of the app "N***Chatroom." The app has been available in the Apple App Store since March 2020 and has not been subject to any geographical restrictions. To join the app

and actively participate, an invitation from a member is required; merely downloading it is not sufficient.

Assessment of Evidence:

The findings made are based on the uncontradicted submissions of the respondent in this regard, as well as partially on the consistent submissions of the parties involved.

In the Apple App Store, developers can specifically select which countries their app should be available in.

Assessment of Evidence: The finding is based on an official inquiry by the Data Protection Authority at https://help.apple.com/app-store-connect/#/**** (accessed on May 27, 2022).

At the end of 2020 / beginning of 2021, there was a rush for the app N***Chatroom in the German-speaking area, which resulted in a significantly increased number of users and intensive media coverage.

Assessment of Evidence: The finding is based on the submissions of the complainant, the online articles cited in the complainant's statement dated October 12, 2021, as well as an official inquiry by the Data Protection Authority (among others at https://www.kleinezeitung.at/kultur/medien/**2*3/N***Chatroom-App_****, https://www.derstandard.at/story/20**4*5/N***Chatroom-****, both accessed on June 30, 2022).

The complainant registered on January 19, 2021, with the respondent's application "N***Chatroom" and was an active user with a valid account at least until the time of filing the complaint.

By email dated January 25, 2021, the complainant submitted the following request for information pursuant to Article 15 GDPR to the respondent. This request for information remained unanswered until the filing of the complaint.

[Note from the editor: The request for information from the complainant, reproduced here as a graphic file (facsimile of an email), cannot be displayed (anonymized) in the RIS. It was sent on January 25, 2021, from an email address attributable to the complainant in English to support@n***co.com. The text also includes a phone number of the complainant. A graphic file with a copy of the complainant's passport was attached.]

Assessment of Evidence:

The findings made are based on the uncontradicted submissions of the complainant in this regard, as well as the documents submitted with the complaint.

The request for information contains the name, email address, and phone number of the complainant, which were also necessary for registration in the respondent's app. Furthermore, a copy of the complainant's passport was attached to the request for information.

****Assessment of Evidence:**** The findings made arise from the unchallenged submissions of the complainant.

The respondent is exclusively based in T***, USA. There is no establishment in the EU.

On May 9, 2021, during the ongoing proceedings, the respondent published a privacy policy that, according to its statements, is compliant with the GDPR and announced H*** Ireland Ltd. as its representative under Article 27 GDPR.

****Assessment of Evidence:**** The findings made arise from the undisputed statements of the respondent in this regard.

****D. In legal terms, it follows that:****

1. ****Regarding the respondent and its representative in the Union****

It should be noted at the outset that the so-called "One-Stop-Shop" mechanism under Article 60 GDPR does not apply in the present case, as the respondent, as indicated in its statement of July 16, 2021, is to be regarded as a controller within the meaning of Article 4(7) GDPR and has its seat only in the USA (cf. the decision of the Data Protection Authority of March 7, 2019, GZ DSB-D130.033/0003-DSB/2019).

The respondent is based in T***, USA, and has no establishment in the Union.

In its statement of July 16, 2021, the respondent names H*** Ireland Ltd. as its representative according to Article 3(3) in conjunction with Article 27(1) GDPR. Since the designation of a

representative does not entail a transfer of responsibility according to the explicit wording of Article 27(5) GDPR—and the respondent has never claimed that H*** Ireland Ltd. is to be regarded as a (joint) controller for the processing in question related to the N***Chatroom app and in particular for the processing of the complainant's personal data—the present decision of the Data Protection Authority is directed against the respondent.

2. **Regarding the territorial scope of the GDPR**

Although the respondent is not established in the Union, the processing of the complainant's personal data (at least first and last name, as well as their telephone number and email address), who resides in Austria, is related to the offering of goods or services.

Even though the respondent states that the N***Chatroom app was only marketed in the European market starting in May 2021, marketing is not the sole determining factor. As indicated by the complainant and also established in the official investigation, the app was already available in Austria in January 2021.

The respondent did not restrict access to its app for citizens from European states, although technical possibilities for doing so existed. The app was available from the outset in the Apple App Store in all states. Even with the access based on an invitation system, no distinction was made based on the users' place of residence. If a potential user from the European area received an invitation to the app, usage was possible. In this context, the GDPR applies territorially according to Article 3(2)(a) GDPR.

3. **Regarding the right to information**

According to Article 15(1) GDPR, the data subject has the right to request confirmation from the controller as to whether personal data concerning them is being processed and, if so, to obtain information about such personal data as well as to claim the information according to lit. a to h of the same article.

The common modalities for exercising the rights of data subjects (including the right to information) are regulated in Article 12 GDPR. Accordingly, the emergence of a data protection-related right to information requires, among other things, that the identity of the information requester is established. If the controller has reasonable doubts about the identity, they may request additional information necessary to confirm the identity of the data subject according to Article 12(6) GDPR.

Paragraph 6 of the same article does not allow for routine identity verification. For example, a controller may not require all individuals who submit a request for information under Article 15 GDPR in writing or by email to provide proof of identity. However, such a request is permissible if the controller did not previously know the postal address or email address of the data subject or if the address provided by the requester does not match the address of the data subject in the controller's records (cf. Bäcker in Kühling/Buchner (eds.), General Data Protection Regulation (Commentary) Article 12 RZ 30).

Article 12 GDPR does not specify a particular form of identification. Recital 64 GDPR states in this context that the controller should use all reasonable means to verify the identity of a data subject requesting information.

Proof of identity can, for example, be provided by means of a passport or an identity card, an electronic identity verification, an identity confirmation service, a qualified electronic signature, another electronic verification method, or also in...

other form, provided that the identity is sufficiently proven (cf. Greve in Sydow (ed.), European General Data Protection Regulation (Commentary) Art. 12 RZ 19). In the present case, the question arises as to whether the respondent had well-founded doubts regarding the identity of the information requester at the time of the application and during the ongoing proceedings, and therefore rightly requested further information to confirm the identity or refused to provide the information. In other words, did the respondent lack information necessary to confirm the identity of the data subject, or could the respondent have already identified the information requester based on the details in the information request?

As can be inferred from the findings of fact, the information request was submitted along with the applicant's passport and the telephone number and email address used by her for registration in the respondent's app. Given this fact, it would have been possible for the respondent to identify the

information requester without any problems based on the details provided by the applicant. Furthermore, the respondent overlooks that doubts about the identity of an information requester do not entitle them to leave an information request completely unanswered. According to the clear wording of Art. 12 para. 4 GDPR, the data subject must be informed without delay, and at the latest within one month of receiving the request, about the reasons why the controller does not act on the request of the data subject, and about the possibility of lodging a complaint with the supervisory authority or seeking a judicial remedy.

The respondent has undisputedly failed to do this, which is why a decision must be made accordingly (cf. regarding the legal situation under the DSG 2000, the decision of the Data Protection Commission of April 10, 2013, GZ K121.924/0006-DSK/2013). The performance order is based on Art. 58 para. 2 lit. c GDPR and therefore contains an option, as the respondent must examine whether the requested information can be provided or whether there are reasons that oppose (complete) disclosure.